



NIGERIAN INSTITUTE OF QUANTITY SURVEYORS

The professional construction cost managers

CODE OF ETHICS AND PROFESSIONAL CONDUCT



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OF
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FOREWORD

The critical nature of a code of conduct and ethics to the activities of a professional body like the Nigerian Institute of Quantity Surveyors (NIQS) cannot be overstated. The code of conduct articulates the values that the Institute wishes to entrench in its members and, in doing so, defines the expected behaviour. The code of conduct also clarifies the Institute's values and principles, linking them to the globally accepted ethical standards and frameworks.

The previous Rules of Conduct and Disciplinary Procedures was developed in the year 2000 during the Presidency of late QS Murtala A. Oladapo of blessed memory. An attempt to revise it was made in 2014 during the Presidency of QS Murtala M. Aliyu. This edition is the outcome of an extensive revision carried out by the Education and Training Committee and Ethics and Practice Monitoring Committee of NIQS (2019-2021). The revision demonstrates the desire and will of the Institute to strive for and attain the highest level of ethical standards in the global environment.

All members of the Institute are mandatorily required to discharge their duties to their clients and the general public in accordance with the ethical principles and provisions contained in this Code of Ethics and Professional Conduct. In view of the dynamism of technology and professional practice, it is recommended that the code be reviewed every ten years.

We wish to acknowledge the Royal Institution of Chartered Surveyors (RICS), International Ethics Standards, New Zealand Institute of Quantity Surveyors (NZIQS) and Singapore Institute of Surveyors and Valuers (SISV) for the use of current editions of their respective "Rules/Code of Conduct for Members" as models and guidelines in the development of this document.

This revised NIQS Code of Ethics and Professional Conduct comes into effect from 11th November, 2020.

QS M.ABBATOR, FNIQS

President,

Nigerian Institute of Quantity Surveyors (NIQS)

PART I: INTRODUCTION

1. This Code of Ethics and Professional Conduct contains rules, principles, and values expected of members and firms, and it is meant to provide a framework for ethical standards and appropriate behaviors for the benefits of its members, clients, employers, employees, third parties, stakeholders and the public.
2. Members of the Nigerian Institute of Quantity Surveyors (NIQS) are governed by its Constitution, Byelaws and Code of Ethics, in addition to the General Laws of Nigeria.
3. A breach of this Code is a basis on which a member may be disciplined in accordance with the applicable provisions. Unprofessional conduct not specifically covered by this Code may likewise result in discipline of a member, depending on the particular circumstances.

PART II: DEFINITIONS AND GENERAL INTERPRETATION

1. The following terms throughout have the following meanings:
 - a) client: an individual or organization that has engaged the services of a Quantity Surveyor and has entered into an agreement with a member or firm for the provision of such services.
 - b) member: 'member' is the person approved by the National Executive Council of the Nigerian Institute of Quantity Surveyors as having passed the Test of Professional Competence (TPC) or other equal and related examination of the Institute and duly elected.
 - c) firm: includes a sole principal, partnership, corporate body or company whether incorporated with limited or unlimited liability offering quantity surveying services either solely or in combination with other professional services, and having one or more partner(s) or director(s) who are NIQS members.
 - d) Employer: shall mean a person or organization or government which engages a member as a salaried employee.

- e) Employee: shall mean an individual who was hired by an employer to do a specific job.
- f) Third party: shall mean a person who is involved in a situation in addition to the two main parties involved.
- g) Stakeholder: shall mean anyone who has an interest in the process or outcome of a project.
- h) Public: shall mean the people as a whole and having common interest.
- i) Supplanting: shall mean the replacement of one member or firm with another on a project in an unethical manner.
- j) Advertisement: means any published material of any kind whatsoever issued or exhibited by or on the authority of a member primarily designed to promote the corporate image of the member's business. It includes display advertisements and classified advertisements in the press, or any social media platforms, or on radio or television, posters, brochures, cards, leaflets, calendars, blotters and diaries.

PART III: ETHICAL PRINCIPLES

- 5. The ethical principles and hallmarks which every member is expected to depict at all times are:
 - a) Accountability; Members should be responsible for their actions, behaviors, performance and decisions. Members shall recognize and respect clients, third party and stakeholder's rights and interests.
 - b) Integrity; members shall at all times exhibit a consistent and resolute adherence to strong ethical principles and values, truthfulness and honesty.
 - c) Objectivity; members shall deal with all issues in the line of their duties with absolute truthfulness independent from their individual biases and subjective perceptions.
 - d) Openness; Members should unimpededly share knowledge, insights and information with clients, third party and stakeholders.

- e) Transparency; Members should at all times exhibit openness, communication and accountability as attributes of corporate culture that are revealed through the behaviors of an organization's leaders, employees and stakeholders.

PART IV: APPLICATION OF THE CODE

- 6. The Code applies to all members and firms. Members must comply with it at all times.
- 7. A member may be held accountable for any breach of this Code by
 - a) others acting on their behalf; or
 - b) a firm of which the member is a partner or director; if the breach was committed with that member's concurrence or prior knowledge.

PART V: PROFESSIONAL CONDUCT

- 8. Members must act in a manner consistent with the good reputation of NIQS and the profession, and refrain from any conduct which might bring discredit to or undermine public confidence in the profession.
- 9. Members and firms shall at all times act with impeccable integrity and avoid any actions or situations that are inconsistent with their professional obligations. No member shall misrepresent, or permit others to misrepresent, his or her membership status, professional qualifications or experience.

PART VI: COMPETENCE, DILIGENCE AND CLIENT CARE

- 10. Members must:
 - a) carry out their work cautiously and competently; with due skill, care and diligence.
 - b) ensure that the member's relevant professional knowledge and skills are kept updated

- c) recognize their own professional or technical limitations and only undertake quantity surveying activities that are within the member's competence.
- 11. A member should properly supervise all services carried out for and on the member's behalf.
- 12. Members shall observe the highest standards of accuracy in any document that they present, such as reports, statements, expert evidence, valuations and the like.
- 13. A member must not provide any advice or make any statement without reasonable factual knowledge unless it is appropriately qualified or limited.
- 14. A member should ensure that client's instructions and any subsequent variations of instructions, including as to commission, should be recorded in an appropriate form, preferably in writing.
- 15. Members must act promptly and efficiently in providing services to clients and with proper regard to the technical standards expected of them.
- 16. A member must, in the case of unavoidable delay, communicate to the client the progress being made in respect of the instructions issued to the member concerning the delay.

PART VII: INDEPENDENCE, OBJECTIVITY AND CONFLICT OF INTEREST

- 17. Members must maintain independence and impartiality where the exercise of objective judgment is required. Members must not allow prejudice or bias, bad faith, conflict of interest, or the influence of others to override objectivity.

18. Members must take reasonable steps to identify circumstances that could be construed as conflict of interest. These include, but are not limited to:
- a) acting, for remuneration or other reward, for more than one party in respect of any particular work;
 - b) acting in conflicting positions on the same work;
 - c) pricing for another party any part of a Bill of Quantities prepared in the member's office or place of employment or by the member's firm except on behalf of the client commissioning the original work;
 - d) undertaking the pricing of any Bill of Quantities prepared by another firm for the same works, for more than one client;
 - e) having any financial interest in any organisation with which they may have occasion to deal on behalf of their client.
19. Where a conflict of interest arises, or a member identifies circumstances that could be construed as conflict of interest, the member must:
- a) disclose to each client, and any other interested party, the possibility of the conflict, the circumstances surrounding it and any other relevant facts;
 - b) encourage the client to obtain independent professional advice; and
 - c) not act or continue to act for the client unless the client provides written instructions and consent that acknowledges the actual or potential conflict.

PART VIII: CONFIDENTIAL INFORMATION

20. A member must maintain the confidentiality of information passed to him/her by his/her client(s) as privileged information and shall not be for the consumption of third party or general public.
21. A member who obtains confidential information about a client's affairs in the course of the member's quantity surveying activities must not:

- a) use the information for any purpose other than the purpose for which it was obtained; or
- b) disclose the information to any person, unless permitted by paragraph 23.

22. A member may disclose confidential information if, and to the extent that:

- a) the client authorizes the disclosure;
- b) the member is permitted or compelled by law to disclose the information;
- c) the member is required to disclose the information for the purpose of making a complaint to NIQS; or
- d) disclosure is necessary for responding to any complaint brought against the member.

PART IX: PROFESSIONAL COURTESY

23. Members must not maliciously or unfairly criticize or attempt to discredit the professional or personal reputation of another member of the NIQS, or allied professional person.

24. No member shall comment on the work done or fees charged by another member unless, in the course of their professional duties, they are required to review the work of that other member. At such times, the member shall, subject to any obligations of privilege or confidentiality, use their best endeavors to inform the other member, investigate thoroughly, and present their findings ethically and impartially.

PART X: OBLIGATIONS OF MEMBERS TO REPORT TO NIQS

25. Members must at all times comply with:

- a) the Constitution, Bye-laws, Code of Ethics and Professional Conduct of the NIQS; and
- b) current standards, policies, or orders published by the Institute.

26. A member who has reasonable grounds to believe that another member has committed a significant breach of the Code, or other illegal or unethical conduct, must report the matter to the NIQS.
27. A member should inform the NIQS if:
- a) the member is convicted, or discharged without conviction, for any criminal offence of embezzlement, theft, fraud, or dishonesty, or any crime that carries a sentence of six months or more imprisonment;
 - b) the member is the subject of a disciplinary or employment investigation;
 - c) the member is declared bankrupt; or
 - d) a firm of which the member is a director is placed into receivership or liquidation.
28. A member who is the subject of a complaint or other investigation by NIQS must be frank and honest and fully cooperate with the investigation, including any requests for information.

PART XI: PUBLICATIONS AND PUBLICITY

29. A member is permitted to publicize the professional services offered by his/her firm or company to the public subject to the following:
- a) Their names, addresses and services including notices of new or formation of or changes in partnership/company details by post, email and social media to their correspondents and in the professional press.
 - b) A member may produce a brochure or other materials describing his/her firm and the services which it offers provided that such brochure or other materials should only be sent to prospective clients or other persons who specifically request for it.
 - c) The contents contained therein in the brochure must be readily verifiable, accurate and factual information.
 - d) That members shall not behave or act in anyway, publish any matter, cause any matter to be published or distributed, purporting to be or

which could be construed to be an official action, statement or publication of the Institute without specific approval of the Council.

- e) All such publication shall not contain any comparatives or superlatives.
30. Letters & Published Articles, Public Speaking & Lectures, Radio & Television Appearance, Other Social Media Internet Platforms.
- a) A member involved in any of the above publicized activities must strictly observe the principles of professional etiquette which demands modesty concerning personal attainment, achievements and courtesy in reference to colleagues.
 - b) A member contributing to a professional journal or publishing a text book concerning the profession or speaking at a course, conference or meeting may disclose his/her name, his/her professional designation, nature of employment, his/her firm or employer and the position he/she holds.

PART XII: FIRM

31. Practicing Firm:

- a) A Firm shall at all times carry out its business with integrity devoid of any pecuniary interest or motives and avoid any actions that are inconsistent with its professional obligations.
- b) A Firm shall carry out its professional work with due skill, care and diligence and with proper regard for the technical standards expected of it.
- c) A Firm shall carry out its professional work with proper regard for standards of service to the client's satisfaction.
- d) A Firm should inform the Institute where any changes are made.

32. Institute's Logo:

- a) All practicing firms in the register of the NIQS are expected to carry the Institute's logo on their letter heads, name plates, cards, brochures, and the like as a symbol that conveys the essence of our brand.

- b) It shall be an offence for a Corporate Member to fail to conspicuously display or use the Institute's logo.

PART XIII: SUPPLANTING

33. Supplanting:

- a) A member shall not attempt to injure, maliciously or falsely, directly or indirectly, the professional reputation, prospects, practice or employment of another member, nor will he/she indiscriminately criticize another member's work in public. If he/she believes that another member is guilty of unethical or illegal practice, he/she shall present such information to the proper authority for action.
- b) A member shall not attempt to supplant another in a particular employment after becoming aware that definite steps have been taken toward the other's employment.
- c) A member shall not compete unfairly with another member by attempting to obtain employment or advancement or professional engagements by taking advantage of a salaried position, by criticizing other member, or other improper or questionable methods.
- d) A member shall endeavor to avoid a conflict of interest with his/her employer or client, but when unavoidable, the member shall fully disclose the circumstances to his/her employer or client.
- e) A member, while in the employ of others, he/she shall not enter promotional efforts or negotiations for work or make arrangements for other employment as a principal or to practice in connection with a specific project for which he has gained particular knowledge without the consent of all interested parties.
- f) Any member found to be engaged in the act of supplanting should be reported to the Nigerian Institute of Quantity Surveyors for investigation and appropriate discipline.

PART XIV: DESIGNATIONS

35. The designation of members by distinguishing initials or words shall be as follows:

- a) Every Fellow shall be entitled to use after his/her name the initials FNIQS (i.e. Fellow of the Nigerian Institute of Quantity Surveyors)
- b) Every Corporate Member shall be entitled to use after his/her name the initials MNIQS (i.e. Member of the Nigerian Institute of Quantity Surveyors)
- c) Every Honorary Fellow shall be entitled to use after his/her name the initials Hon. FNIQS
- d) If any member is in contravention of not using the appropriate designation, such action shall be considered as unprofessional conduct and as a breach of this code.

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